

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2026CUPP064804: BENJAMIN LEXUS vs SANTA PAULA UNIFIED SCHOOL
DISTRICT, A PUBLIC ENTITY
07/14/2026 in Department 43
Demurrer**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Demurrer of Santa Paula Unified School District to the first six causes of action of the complaint

Tentative Ruling: The court intends to sustain the demurrer of Santa Paula Unified School District (District) to the first six causes of action of the complaint (1- negligence; 2- negligent hiring, supervision and retention; 3- negligent failure to warn, train or educate; 4- negligent supervision of a minor; 5- NIED; 6- breach of mandatory duty) with leave to amend. Plaintiff's allegations that District personnel "should have known that there was a foreseeable risk" that Defendant Engle was sexually abusing Plaintiff are pled with insufficient factual detail. (Compare *Roe v. Hesperia Unified School District* (2022) 85 Cal.App.5th 13).

Plaintiff alleges that Defendant Engle was "openly touchy and handsy with students" in front of District personnel. (Compl. at ¶48). Plaintiff does not allege that Defendant's creation of "games to incentivize students to show him their genitals" occurred in the presence of or were reasonably known to District personnel. (Compl. at ¶37). Plaintiff alleges that Engle "provided students with

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candy and invited students over to his house to swim in front of DISTRICT administrators, teachers, staff, and other students.” (Compl. at ¶49). This allegation is ambiguous as to whether the District were present for the invitation or present for the pool parties. If the latter, by inference, District would have been able to supervise the pool and would have known (or could have known) if Defendant Engle was engaged in wrongdoing with Plaintiff (or other students). Plaintiff does not allege that District insufficiently supervised such parties. If no mandated reporters had knowledge or reasonable suspicion of the alleged abuse of plaintiff, then there is no violation of CANRA. Reporting a teacher for inviting students to a pool party or giving them candy for completing school assignments is not reasonable without allegation of other untoward behavior.

Although Plaintiff has pled a special relationship between the District and Plaintiff, the District would not breach any negligence related duty (hiring, supervision, retention, training, or supervision of Plaintiff himself) if the District had no reason to know of the foreseeable risk of Defendant Engle’s conduct. Nor did they have a mandatory duty to report suspected child abuse.

Plaintiff is granted leave to amend the complaint on or before August 1, 2026.

Moving party is ordered to serve notice of the Court’s ruling.